

4.5. Right to a decision under Rule 112(2) EPC

The right to a decision after notification of loss of rights is a substantial procedural right which cannot be ignored by the EPO. A party who applies for a decision under R. 112(2) EPC is entitled to receive one. If the correctness of a notification of loss of rights under R. 112(1) EPC is challenged, the EPO has a duty to reply within a **reasonable period of time** having regard to the subject-matter of the communication (see J 29/86, OJ 1988, 84; and J 34/92).

5. Notification of decision under Rule 111(1) EPC

Under R. 111(1) EPC, a decision delivered during oral proceedings must be put in writing and notified to the parties. The date of notification is relevant with regard to the filing of an appeal (Art. 108 EPC and R. 111 EPC). The legal fiction of deemed notification set out in R. 126(2) EPC applies whereby the letter is deemed to be delivered on the tenth day following its handover to the postal service provider.

L. Correction of errors in decisions

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1. Competence to correct a decision according to Rule 140 EPC

The competence to correct errors under R. 140 EPC (R. 89 EPC 1973) lies with the body which took the decision (see e.g. G 8/95, OJ 1996, 481, J 12/85, J 16/99). Hence, even during opposition proceedings, the examining division is competent for correcting errors according to R. 140 EPC (Guidelines H-VI, 3.3 – March 2022 version). In accordance with the decision of the President of the EPO dated 23 November 2015 (OJ 2015, A104), decisions under R. 140 EPC are dealt with by formalities officers.

1.1. Competence of opposition division or examining division

In T 226/02 the board considered that the opposition division had acted *ultra vires* in taking a decision under R. 89 EPC 1973 to correct a decision of the examining division. The board held that only the body which had taken a decision was entitled to correct it so as to put it in the form which it had intended it to take. Thus, only the examining division was entitled to correct its own decision. This finding was endorsed by the board in T 1495/09, which held that, in the case at issue, pursuant to R. 140 EPC, the opposition division in opposition proceedings had no competence to correct the decision taken by the examining division and would thus have acted *ultra vires* if it had corrected the grant decision. The same applied to the board of appeal in opposition-appeal proceedings (Art. 111(1), second sentence, EPC 1973).

1.2. Competence of the boards of appeal

In J 12/85 (OJ 1986, 155) the board held that a board of appeal could only examine appeals from decisions of other instances of the EPO (Art. 21(1) EPC). Thus it cannot examine a request for a correction, based on R. 89 EPC 1973 (R. 140 EPC), of the decision under appeal. A decision on this request first had to be rendered by the examining division before the matter could be referred to the board of appeal.

In T 810/09 the board held that it was not competent to decide on a request for correction of a written decision taken by the opposition division and for this reason rejected the appellant's request for correction under R. 140 EPC.

1.2.1 Legal Board or Technical Boards

In G 8/95 (OJ 1996, 481) the Enlarged Board of Appeal held that the decision refusing a request for correction of the decision to grant concerned the grant of the patent. It was, therefore, the technical boards – not the Legal Board of Appeal – which had to decide on appeals from a decision of an examining division refusing a request under R. 89 EPC 1973 for correction of the decision to grant.

1.3. Competence to correct if application is no longer pending

In T 867/96 of 30 November 2000 the patentee had requested the correction under R. 89 EPC 1973 of a sentence in the reasons for a board of appeal decision, stating that all the parties had agreed that a certain document represented the closest prior art. The board pointed out that the case was closed, as res judicata, and therefore no longer before it. However, citing in particular G 8/95 (OJ 1996, 481) and G 1/97 (OJ 2000, 322), the board held that only the board which had taken a decision could decide whether it required correction. Furthermore, establishing whether correction was necessary involved studying the facts, implying in general and up to a certain point that such requests were admissible. The current board thus ruled that the request for correction was admissible. Nevertheless this particular request did not fulfil the requirements of R. 89 EPC 1973 and was therefore refused.

In J 16/99 the board held that when correction of the priority date of a granted patent is requested, there may be a case for correction under R. 89 EPC 1973 of the EPO's decision to grant. The board found that R. 89 EPC 1973 allowed the correction of errors in, inter alia, decisions to grant, without the limiting requirement that proceedings be pending.

2. Scope of Rule 140 EPC

According to the wording of R. 140 EPC, in EPO decisions, only linguistic errors, errors of transcription and obvious mistakes may be corrected. R. 140 EPC (formerly R. 89 EPC 1973) applies to both decisions of the Boards of Appeal and those of first-instance departments. Following G 1/10 (OJ 2013, 194) R. 140 EPC no longer covers the correction of the text of a patent. Neither is it applicable for the correction of legal errors, irrespective of whether they concern substantive or procedural aspects (G 1/97, OJ 2000, 322). This leaves only errors in bibliographic data contained in the decision to grant or formatting/editing errors during the preparation of the Druckexemplar (as well as printing errors in the publication of the granted patent) to fall under R. 140 EPC (Guidelines H-VI, 3.1 – March 2022 version).

Correction of errors in decisions must be distinguished from correction of errors in documents filed by the applicant (or patentee) which falls under R. 139 EPC.

2.1. Correction of the text of a patent

Under the boards' case law prior to G 1/10 (e.g. T 850/95, OJ 1997, 152; T 425/97, T 965/98) the text of a patent could be corrected under R. 140 EPC if it was not, and obviously could not be, in the form intended by the decision-making department.

T 367/96 of 21. June 2001 and G 1/97 introduced a narrower interpretation of R. 140 EPC. According to this, R. 89 EPC 1973 had to be interpreted narrowly and only allowed for the correction of formal errors in the written text of the decision notified to the parties in accordance with R. 111 EPC (R. 68 EPC 1973). It did not, however, pave the way for re-examination of the factual or legal issues on which a decision was based, nor for reversal of any conclusion derived by the decision-making department from a consideration of these issues.

In G 1/10 (OJ 2013, 194), the Enlarged Board went further, holding that, although patent documents referred to in a grant decision become an integral part of the decision, they cannot be corrected under R. 140 EPC. Since R. 140 EPC is not available to correct the text of a patent, a patent proprietor's request for such a correction is inadmissible whenever made, including during opposition or limitation proceedings (now established case law of the Boards of Appeal, see e.g. T 2051/10, T 657/11, T 1578/13, T 164/14). The Enlarged Board's decision was limited to corrections within grant decisions of the description, claims and drawings (patent documents), and not concerned with corrections of bibliographic data.

The Enlarged Board stated that the absence of a possibility to request patent corrections under R. 140 EPC should not prejudice patent proprietors. If a correction is obvious (as it should be to satisfy R. 140 EPC) then there will be no surprise or adverse effect on opponents or others, because all concerned should read the patent as if corrected and an actual correction is unnecessary. If, however a correction is less than immediately obvious, it should not be allowed under R. 140 EPC anyway, which is confined to correction of "obvious mistakes". If, given the opportunity to check the patent text before approving it, an applicant does not draw any errors to the attention of the examining division and thus ensures that his approval is limited to the correct text, then the responsibility for any errors remaining in that text after grant should be his alone, whether the error was made (or introduced) by him or by the examining division.

If however the examining division proceeds to make a decision to grant which contains an error subsequently made by it, so that the granted text is not that approved by the proprietor, then the proprietor is adversely affected by that decision and is entitled to appeal. A patent proprietor may seek to amend his patent during opposition or limitation proceedings and such an amendment could remove a perceived error, however, it would have to satisfy all the legal requirements for amendments including Art. 123 EPC.

In T 506/16 the board held that according to G 1/10, the obligation to check the text in which the patent is to be granted lies with the applicant, and if it does not draw the examining division's attention to any errors, then the appellant alone bears the

responsibility for any errors remaining in the text, regardless of who is responsible for the error.

In T 2051/10, the appellant asserted that there was an erroneous discrepancy between the wording of the granted patent and that of the *Druckexemplar* and requested its "correction". Citing G 1/10, the board held that such a "correction" could not be made under either R. 139 EPC or R. 140 EPC and treated the appellant's request as a "normal" request for amendment under Art. 123(1) EPC.

In T 1003/19 the board did not deviate from G 1/10 and held that R. 140 EPC was not available, but reiterated the right to appeal a decision to grant when the granted text was not approved by the applicant. The case at hand was an example of this. G 1/10 based its consideration on the requirement according to R. 71(3) EPC that the applicant must be informed of the text in which the examining division intends to grant a patent and deals with the applicant's possible reactions thereto, like the implicit approval of this text. In contrast thereto, the decision at hand was based on the fact that the text intended for grant by the examining division had, based on verifiable facts, not been communicated to the appellant and, therefore, R. 71(5) EPC did not (yet) apply.

In T 2081/16 the board affirmed T 1003/19 and held that where the text intended for grant is not communicated to the applicant under R. 71(3) EPC, the fact that the appellant subsequently files a translation and pays the fees for grant and publishing is not decisive. The provisions of R. 71(5) EPC, in this regard, refer to R. 71(3) EPC and therefore presuppose that the applicant has not only been notified of any text but of the text intended for grant.

3. Obvious mistakes according to Rule 140 EPC

In T 450/97 (OJ 1999, 67), the board held that there was an obvious mistake within the meaning of R. 140 EPC if the text of a decision did not reflect the decision-making department's real intention. In T 715/14 the contested decision had referred to a communication dated 3 October 2013 although, undisputedly, the last-issued communication dated 19 April 2013 had been meant. Its correction had then introduced an additional reference to two other communications, which led the appellant to contend that it amounted to a subsequent change in the decision's content and the underlying reasons. The board, however, considered the correction permissible under R. 140 EPC because the communication dated 19 April 2013 was clearly and undisputedly meant and that communication referred to the other two.

In T 683/06, the board held that a correction under R. 140 EPC was not available for re-dating an application where its filing date had been deliberately chosen in a decision-making process (even if that process turned out to be mistaken).

In T 212/88 (OJ 1992, 28) the board held that the absence of a chairman's or minute-writer's signature at the end of an opposition division's decision was a rectifiable, obvious error within the meaning of R. 89 EPC 1973. In the case in question a second examiner